

9. **S-CV-0054129 Faqurzadeh, Nabila v. CSAA Ins. Exchange**

Motion to Compel Uninsured Motorist Arbitration

CSAA Insurance Exchange moves this court for an order compelling claimant Nabila Faqurzadeh to binding uninsured motorist arbitration with Retired Judge David Brown through JAMS Alternative Dispute Resolution. Claimant has not filed a response or yet appeared in this case. Previously, this court continued the matter for CSAA Insurance Exchange to file proof of service of the motion on claimant Nabila Faqurzadeh.

Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration “if [the court] determines that an agreement to arbitrate the controversy exists.” (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59.) “A party seeking to compel arbitration has the burden of proving the existence of a valid agreement to arbitrate. Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition.” (*Sparks v. Vista Del Mar Child & Family Services* (2012) 207 Cal.App.4th 1511, 1518, abrogated by *Harris v. TAP Worldwide, LLC* (2016) 148 Cal.App.4th 373 on other grounds.)

Although CSAA Insurance Exchange submits evidence of an agreement to arbitrate (see Anderson Decl. & Exh. A), proof of service of the motion on claimant Nabila Faqurzadeh remains deficient. Code Civil Procedure section 1290.4 (b) states as follows: “If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) service within this state shall be made in the manner provided by law for the service of summons in an action.”

CSAA Insurance Exchange filed proof of service on claimant’s purported counsel, but that is insufficient as claimant has not appeared in this case. Therefore, CSAA Insurance Exchange does not demonstrate service of the motion pursuant to Code of Civil Procedure section 1290.4(b).

Given this procedural deficiency, the motion is continued for proper service. CSAA Insurance Exchange shall file and serve notice of the continued hearing date on claimant.

The motion to compel uninsured motorist arbitration is continued to **October 20, 2026, at 8:30 a.m., in Department 32** for CSAA Insurance Exchange to file a proper proof of service of the motion on claimant Nabila Faqurzadeh.

10. **S-CV-0054772 Deutsche Bank Natl. Trust. v. New Century Mortgage**

The motion to discharge receiver is continued to **September 22, 2026 at 8:30 a.m. in Department 32** to be heard by the **Honorable Angus Saint-Evens**.